

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MOSES DAMISA, *Complainant*

v.

TRANS ATLANTIC SHIPPING LLC, *Respondent*.

DOCKET NO. 1967(F)

Served: February 25, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER REQUIRING SECOND JOINT STATUS REPORT

On February 22, 2021, the parties submitted a joint status report as required by the order issued January 21, 2021. The parties state that they have requested virtual mediation through the Commission's Office of Consumer Affairs and Dispute Resolution Services ("CADRS") prior to other action in this proceeding. The parties did not suggest how much additional time they will need.

The parties will be granted one month to engage in mediation through CADRS and to settle their dispute. On March 24, 2021, the parties should submit a second joint status report. As noted in the initial order, the parties should only indicate in the joint status report whether mediation occurred, they must not provide any details regarding their positions in mediation. If a settlement is reached, the parties must submit a copy of the settlement agreement with a motion requesting approval.

Before the due date for the second joint status report, the parties should voluntarily produce discovery to each other, as set forth in the January 21, 2021, order. In requesting information from each other, the parties should consider the elements required to prove a violation of 46 U.S.C § 41102(c). If a party is unable to obtain requested information, in the joint status report, they should identify the information requested and explain why that information is relevant to this proceeding, what attempts have been made to obtain the information voluntarily, and why the information cannot be obtained in some other manner. In addition, the parties may describe any remaining issues to be resolved before a briefing schedule is issued.

Accordingly, it is hereby **ORDERED** that the parties be **GRANTED** until March 24, 2021, to engage in mediation of their dispute through CADRS, to voluntarily exchange discovery, and to file a second joint status report.



Erin M. Wirth
Chief Administrative Law Judge